



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing five judgments on Tuesday 20 June 2017 and 35 judgments and / or decisions on Thursday 22 June 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 20 June 2017

[Bayev and Others v. Russia \(applications nos. 67667/09, 44092/12, and 56717/12\)](#)

The applicants, Nikolay Bayev, Aleksey Kiselev and Nikolay Alekseyev, are Russian nationals who were born in 1974, 1984 and 1977, respectively. They live in Moscow and Gryazy (Russia). They are gay activists. The case concerns their complaint about legislation in Russia banning the promotion of homosexuality, also known as the “gay propaganda law”.

Introduced initially at regional level in 2003 and 2006 and then at federal level in 2013, the laws banning so-called “propaganda of homosexuality” constitute, according to the applicants, a virtually full prohibition on nearly any public mention of homosexuality. In particular, in 2013 “promoting non-traditional sexual relationships” among minors was made an administrative offence punishable by a fine. As a protest against these laws, the three applicants had staged demonstrations between 2009 and 2012, with banners stating that homosexuality is natural/normal and not a perversion. They were subsequently found guilty of administrative offences and given fines. They appealed, without success. All their ensuing complaints to the Constitutional Court were also unsuccessful. In its decisions, the Constitutional Court essentially found that the ban was justified on the grounds of protection of morals, referring in particular to the potential dangers of “creating a distorted impression of the social equivalence of traditional and non-traditional marital relations” and of children being lead into non-traditional sexual relations.

Relying on Article 10 (freedom of expression) and Article 14 (prohibition of discrimination) of the European Convention on Human Rights, the applicants complain about the ban on public statements concerning the identity, rights and social status of sexual minorities, alleging that it is discriminatory. They point out in particular that they were convicted of administrative offences for displaying the most trivial and inoffensive of banners. They also highlight the general impact of the ban on their daily lives, as it not only prevents them from campaigning for LGBT rights but also requires them in effect to conceal their sexual orientation whenever a minor is present.

[Bogomolova v. Russia \(no. 13812/09\)](#)

The applicant, Tatyana Bogomolova, is a Russian national born who was born in 1978. Together with her son, born in 2001, Ms Bogomolova lives in Berezniki in the Perm region of Russia. The case concerns the unauthorised use of her son's image.

In November 2007, a photograph of her son was published on the cover of a booklet prepared by the Municipal Centre for Psychological, Medical and Social Services. The booklet, entitled “Children need a family”, was circulated to inform the community about the role of the Centre in both protecting orphans and assisting families hoping to adopt. Ms Bogomolova brought civil proceedings to complain that she, together with her son, had suffered damage to her honour, dignity and reputation. She claimed that the use of the photograph had given the impression that she had

abandoned her son and that this had affected her reputation not only as a mother, but also as a schoolteacher. Furthermore, her son had become a victim of mockery amongst his peers following his appearance on the booklet. The courts dismissed her claims however, finding that the photograph had been taken with her authorisation and that she had not placed any restrictions on its use.

Relying on Article 8 (right to respect for private and family life) of the European Convention, Ms Bogomolova complains that the unauthorised publication of her son's photograph infringed their right to private and family life and that the domestic courts failed to protect these rights.

[M.O. v. Switzerland \(no. 41282/16\)](#)

The applicant, Mr M.O., is an Eritrean national who was born in 1990. He grew up in Eritrea, but currently lives in Switzerland. The case concerns the threat of his expulsion to Eritrea.

Mr M.O. entered Switzerland illegally in June 2014 and applied for asylum. He was heard by the Swiss asylum authorities on three occasions before his application was ultimately rejected in 2016 and his departure from Switzerland was ordered. His appeal against this decision to the Federal Administrative Court was also subsequently rejected. Mr M.O. essentially claimed that he would be at risk of ill-treatment if deported to Eritrea because he was a deserter from military service and, following a period of imprisonment, had escaped and illegally left the country. Both the asylum authorities and the Federal Administrative Court found though that he had failed to substantiate his claim in his three interviews, which lacked substance and detail. They also pointed to a number of discrepancies in the reasons for and circumstances of his leaving Eritrea.

Mr M.O.'s expulsion has, however, in the meantime been stayed on the basis of an interim measure granted by the European Court of Human Rights under Rule 39 of its Rules of Court, which indicated to the Swiss Government that the applicant should not be expelled to Eritrea whilst the Court was considering his case.

Relying on Article 3 (prohibition of torture and of inhuman or degrading treatment) and Article 4 § 2 (prohibition of slavery and forced labour), Mr M.O. alleges that, if deported to Eritrea, he would face a real risk of inhuman and degrading treatment and of being forced to carry out indefinite military service.

[Ali Çetin v. Turkey \(no. 30905/09\)](#)

The applicant, Ali Çetin, is a Turkish national who was born in 1954 and lives in Ankara. The case concerns his criminal conviction for having insulted a civil servant.

In 2003 the Turkish Foundation for Environmental Protection (*Türkiye Çevre Koruma Vakfı*) was audited by the tax authorities; irregularities in the accounts were subsequently found in the report issued by the inspector responsible for the audit. As a result, Mr Çetin, who worked as an accountant for the Foundation, had his contract terminated.

Mr Çetin challenged the report in a letter sent to the Directorate General for Foundations, requesting the deletion of certain passages which were, in his view, damaging to his career, and alleging that the report had been drafted in a subjective manner and contained errors of law. He attached to his correspondence a letter that he had previously sent to the Turkish Foundation for Environmental Protection, in which he accused the inspector of having acted as though he were issuing a "fatwa" – a decision issued by a competent religious authority, setting out the solution to a question of Islamic law – and comparing him indirectly to "Bekçi Murtaza" – a fictional character in a Turkish novel, who was viewed as placing his own principles and truths above everything else and seeking to impose them on others. The inspector lodged a complaint against Mr Çetin for insulting a civil servant.

In 2008 Mr Çetin was sentenced by the Ankara Criminal Court to seven days' imprisonment and ordered to pay a judicial fine of 164 euros (EUR), on the basis of a report prepared by the Institute for the Turkish Language which found that certain expressions used in Mr Çetin's letter tended to denigrate the inspector and emphasise his shortcomings, in particular the terms "fatwa" and "Bekçi Murtaza". The prison sentence was subsequently commuted to a fine and the applicant was ultimately ordered to pay a total fine of 195 EUR. That judgment was final.

Relying on Articles 6 (right to a fair trial) and 10 (freedom of expression), Mr Çetin complains about his criminal conviction for insult and the fact that the criminal court delivered a final judgment, which was not open to re-examination by a higher court.

Just Satisfaction

Cumhuriyetçi Eğitim Ve Kültür Merkezi Vakfı v. Turkey (no. 32093/10)

The applicant, Cumhuriyetçi Eğitim ve Kültür Merkezi Vakfı or *CEM Vakfı* (the Foundation for Republican Education and Culture), is a foundation set up under Turkish law in 1995.

The case concerns the possibility under Turkish law for places of worship to be granted an exemption from paying electricity bills and the refusal to grant this privilege to the applicant foundation.

Relying in particular on Article 14 (prohibition of discrimination) taken together with Article 9 (right to freedom of thought, conscience and religion), the applicant foundation complained that, although the electricity bills for places of worship were usually paid by the Directorate of Religious Affairs, it had been deprived of this privilege on account of the failure to recognise the *cemevis* as places of worship in Turkey.

In its principal judgment of 2 December 2014, the Court held that there had been a violation of Article 14 taken together with Article 9, in that the system for granting exemptions from payment of electricity bills for places of worship under Turkish law entailed discrimination on the ground of religion. It further held that the question of the application of Article 41 (just satisfaction) was not ready for decision and reserved this question for examination at a later date. The Court will rule on this matter in its judgment of 20 June 2017.

Thursday 22 June 2017

Aycaguer v. France (no. 8806/12)

The applicant, Jean-Michel Aycaguer, is a French national who was born in 1959 and lives in Ossès (France). The case concerns the applicant's refusal to undergo biological testing, the result of which was to be included in the national computerised DNA database (FNAEG).

On 17 January 2008 Mr Aycaguer took part in a protest organised by an agricultural trade union and a mutual-based land alliance on the occasion of a professional meeting in the *département* of Pyrénées-Atlantiques. This event was held in a tense political and trade-union context. At the end of the meeting scuffles broke out between the demonstrators and the gendarmerie.

Mr Aycaguer was placed in police custody and brought before the Bayonne Criminal Court, charged with intentional violence not entailing total unfitness for work against a public servant person and using or threatening to use a weapon, in this instance an umbrella. Mr Aycaguer was sentenced to two months' imprisonment, suspended.

On 24 December 2008, following a request from the prosecutor's office, Mr Aycaguer was ordered to undergo biological testing, on the basis of Articles 706-55 and 706-56 of the Code of Criminal Procedure. On 19 May 2009 he was summoned to appear before the criminal court for failing to provide a biological sample and on 27 October 2009 the Bayonne *tribunal de grande instance*

ordered him to pay a fine of 500 euros. The Pau Court of Appeal upheld that judgment. Mr Aycaguer lodged an appeal on points of law, which was dismissed.

Relying on Article 8 (right to respect for private life), Mr Aycaguer alleges that there has been a breach of his right to respect for his private life on account of the order to provide a biological sample for inclusion in the FNAEG and the fact that his refusal to comply with that order has resulted in a criminal conviction.

[Dagregorio and Mosconi v. France \(no. 65714/11\)](#)

The applicants, Felix Dagregorio and Alain Mosconi, are French nationals who were born in 1961 and 1967 respectively and live in Brando and Bastia (France). The case concerns the applicants' refusal to undergo biological testing for inclusion in the national computerised DNA database (FNAEG).

Following the takeover of the Société nationale Corse Méditerranée (SNCM) by a financial operator, the SNCM's crews, including Mr Dagregorio and Mr Mosconi in their capacity as representatives of the Union of Corsican Workers, occupied and immobilised the vessel "Pascal Paoli".

On 2 December 2009 the Marseilles Criminal Court imposed suspended sentences on Mr Dagregorio and Mr Mosconi, of one year's and six month's imprisonment respectively, for the apprehension, kidnapping, illegal restraint or unlawful detention of several individuals and usurpation of the command of a vessel.

On the basis of Articles 706-54 and 706-56 of the Code of Criminal Procedure (CCP), Mr Dagregorio and Mr Mosconi were ordered to report for biological testing, intended to identify their DNA. This information was to be included in the FNAEG database. Mr Dagregorio and Mr Mosconi refused.

On 19 October 2010 the Bastia Criminal Court sentenced them to one month's imprisonment. The Bastia Court of Appeal upheld the judgments, finding that "the public authority's interference in the exercise of the right to respect for private life provided for by the French legislature in accordance with Articles 706-54 to 706-56 of the CCP is not contrary to the provisions of Article 8 of the European Convention on Human Rights". The appeal court varied the sentence and imposed a fine of 1,000 euros.

Mr Dagregorio and Mr Mosconi did not lodge an appeal on points of law, on the basis that there was no chance of such an appeal succeeding.

Relying on Article 8 (right to respect for private life), the applicants consider that their conviction for refusing to undergo biological testing amounts to a disproportionate interference in their right to respect for their private life and their physical integrity.

Relying on Article 14 (prohibition of discrimination) taken together with Article 8, they allege discrimination, emphasising that only individuals suspected or convicted of a certain category of criminal offence were subject to biological testing. Under Article 11 (freedom of assembly and association), they allege that there has been a violation of their trade-union freedom. Lastly, under Article 14 taken together with Article 11, they submit that the authorities were not entitled to treat them in an identical manner to the persons targeted by the legislature when setting up the FNAEG.

[Barnea and Caldararu v. Italy \(no. 37931/15\)](#)

The applicants, Versavia Catinca Barnea, Viorel Barnea, Elvis Mauroius Caldararu and Sergiu Andrei Caldararu, M.S. Caldararu and C., are six Romanian nationals who were born in 1977, 1975, 1993, 1995, 2004 and 2007 respectively. The first five applicants are, respectively, the mother, father, two brothers and sister of C. They arrived in Italy in 2007 and settled in a Roma camp. They currently live in Caselle Torinese (Italy).

The case concerns the removal of C., then aged 28 months, from her family of origin for a period of seven years and her placement in a foster family with a view to adoption.

Between 2007 and 2009 Ms Barnea applied unsuccessfully to the social services for financial assistance. She then met E.M., who offered to help her. Ms Barnea subsequently authorised E.M. to spend time with her daughter C. in her flat. In 2009 E.M. was arrested on a charge of fraud while C. was with her. The police had also received an anonymous complaint alleging that E.M. was with a child who was not hers. C. was immediately placed in an institution and the authorities suspected her parents of having sold her to E.M. in exchange for a flat. However, no investigation was opened.

In December 2010 a court ordered that the child be placed in a foster family with a view to her adoption. Mr and Ms Barnea lodged an appeal. In October 2012 the court of appeal found that there existed a strong bond between the child and her parents and that it was preferable, in the child's interests, that she be returned to her family of origin. In consequence, it ordered that a process be initiated for gradually reuniting C. and her family of origin, so that the child could be returned to her biological parents in the six months following its decision. However, the social services did not comply with these instructions and the child continued to live with her foster family and to meet with her parents at various intervals.

In August 2016 the children's court ordered that C. be returned to her family of origin, noting that her placement in the foster family was provisional and that she was entitled to live with her biological parents. C. returned to live with her parents in September 2016, but this move proved to be particularly difficult for her.

Relying on Article 8 (right to respect for private and family life), the applicants complain about the child's removal and placement in care by the Italian authorities in 2009; about the social services' failure to execute the court of appeal's judgment of 2012; about the child's placement in a foster family and the reduction in the number of meetings between the child and the members of her family of origin.

[Bartesaghi Gallo and Others v. Italy \(nos. 12131/13 and 43390/13\)](#)

The applicants are 42 individuals of various nationalities who were born between 1937 and 1981. The cases concern allegations of ill-treatment by police officers during an anti-globalisation demonstration organised to coincide with the 27th summit of the eight major industrialised nations (G8) from 19 to 21 July 2001.

On 21 July 2001, at around midnight, police officers from the *VII Nucleo antisommassa* – a unit made up essentially of officers belonging to a division specialising in anti-riot operations – raided Diaz-Pertini School in order to secure the building and carry out searches. The applicants alleged that the police officers, most of whom wore face masks, had punched, kicked and clubbed them, while shouting at them and threatening them. They had also thrown furniture at some of the applicants. Those who tried to escape and hide had been caught, beaten, and in some cases pulled by their hair from their hiding places. Following the operation, 93 people were arrested – 78 of whom were taken to hospital – and were prosecuted for conspiracy to commit unlawful damage and destruction, aggravated resistance to the police and unlawful carrying of weapons. The proceedings against the occupiers of the building ended with their acquittal.

On the same night, a unit of officers entered Pascoli School, where journalists were filming the events taking place in Diaz-Pertini School, and where a radio station was broadcasting the events live. When the police arrived the journalists were allegedly forced to stop filming and broadcasting, and video tapes containing footage taken over the three days of the summit were reportedly seized.

Criminal proceedings were instituted against the law-enforcement officers in question. With regard to events at Diaz-Pertini School, the Court of Cassation found that the violence in question could be characterised as "torture" within the meaning of, among other provisions, Article 3 of the European Convention on Human Rights but that, in the absence of an *ad hoc* criminal offence in the Italian legal system, the alleged perpetrators of the violence had been charged with offences of simple or aggravated bodily harm. The proceedings concerning those offences had been discontinued under

Article 157 of the Criminal Code as the limitation period had expired. As to the events in Pascoli School, the Court of Appeal found that the raid by the law-enforcement officers had been aimed at destroying any filmed evidence of the raid taking place at Diaz-Pertini School. However, it discontinued the proceedings on the grounds that prosecution of the offence in question was time-barred. That judgment was upheld by the Court of Cassation.

Relying on Article 3 (prohibition of torture and inhuman or degrading treatment), the applicants complain that they were subjected to acts of violence which, in their view, amounted to torture and inhuman and degrading treatment. Under Article 13 (right to an effective remedy), they complain of the lack of an effective investigation. In particular, they complain of the failure to identify most of the officers responsible for the violence and of the absence, in the Italian criminal-justice system, of an offence of torture and inhuman and degrading treatment. Lastly, some of the applicants rely on other Articles of the Convention.

Petrović v. “the former Yugoslav Republic of Macedonia” (no. 30721/15)

The applicant, Dušan Petrović, now deceased, was a Macedonian and Serbian national who was born in 1926.

In 2002, Mr Petrović instituted restitution proceedings for confiscated property (a hotel in Skopje). These proceedings are currently awaiting a decision from the Higher Administrative Court despite the fact that, in July 2014, Mr Petrović applied to the Supreme Court and was granted a ruling that the length of the restitution proceedings had been excessive.

Relying on Article 6 § 1 (right to a fair trial), Mr Petrović complained about the excessive length of the restitution proceedings. He further complained, relying on Article 13 (right to an effective remedy), that he had been denied an effective remedy by the Supreme Court because his complaint to that body about the excessive length of the restitution proceedings had also taken an excessive length of time to decide.

S.M.M. v. the United Kingdom (no. 77450/12)

The applicant, S.M.M., is a Zimbabwean national who lives in London. Relying on Article 5 § 1 (f) (right to liberty and security), he claims that he was detained unlawfully between November 2008 and September 2011. He was detained during that time on the basis that he was awaiting deportation from the UK. In September 2011 he was released on bail and one year later he was granted asylum in the country. He argues that the authorities detained him unlawfully, by failing to apply regulations requiring the release of persons detained under immigration rules who had been victims of torture or who were suffering from a serious mental illness. He also claims that it was unlawful to detain him on the grounds that he was awaiting deportation, given that there had been a moratorium on enforced removals to Zimbabwe imposed by the Secretary of State up until October 2010. Finally, S.M.M. argues that his detention was arbitrary and disproportionate, due to its excessive length.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court’s online database [HUDOC](#).

They will not appear in the press release issued on that day.

Aleksandrova and Others v. Bulgaria (nos. 2888/10, 52546/11, and 5160/14)

Kirilov and Others v. Bulgaria (nos. 12487/09, 31243/10, 61221/10, 5138/11, 51789/11, 58285/13, 75750/13, 2341/14, 49673/14, 57661/14, 69695/14, 12873/15, and 42027/15)

Kolev v. Bulgaria (no. 69591/14)

Tsonev v. Bulgaria (no. 9662/13)

Yanchev and Others v. Bulgaria (nos. 28542/10, 19493/11, 41130/11, 53131/13, 17633/14, 30500/14, and 57504/14)
Durand v. France (no. 9111/12)
Izzo and Others v. Italy (nos. 46141/12, 72275/12, 72284/12, 13439/13, 39146/13, 39149/13, 39152/13, 39153/13, 67725/14, 19723/15, 54798/15, 20868/16, and 60547/16)
Bilewicz v. Poland (no. 53626/16)
Załoska v. Poland (no. 53491/10) and **Rogalska v. Poland** (no. 72286/10) and **398 other applications**
Bar and Others v. Romania (nos. 36017/15, 36060/15, 7793/16, 9214/16, 36680/16, and 41388/16)
Boldan v. Romania (no. 64779/13)
Bucilă v. Romania (nos. 143/16, 44391/16, 44398/16, and 44445/16)
Erdelean and Hajas v. Romania (nos. 64765/13 and 64785/13)
Gherasie v. Romania (no. 17343/15)
Kiraly and Others v. Romania (nos. 75158/14, 38198/15, and 47378/15)
Miron v. Romania (no. 29193/09)
Răduică v. Romania (no. 14951/12)
Tănase and Măruntu v. Romania (nos. 17013/16 and 43702/16)
Kalinichenko and Others v. Russia (nos. 52256/07, 2848/08, 26660/08, 58278/08, 56814/09, and 73139/10)
Kondratyev v. Russia (no. 61513/14)
Maznev and Others v. Russia (nos. 48826/08, 54526/10, 43512/13, 51512/13, 58203/13, and 68362/14)
Morgenshtern and Others v. Russia (nos. 6526/07, 25802/07, 51819/07, 31164/08, 35179/08, 49160/08, and 38805/10)
Nezhinskiy and Others v. Russia (nos. 23621/10, 77073/11, 15484/12, 15801/12, 49703/12, 51370/12, 62736/12, and 63651/12)
Severini v. San Marino (no. 13510/14)
Gombík v. Slovakia (no. 71215/16)
E.T. and N.T. v. Switzerland and Italy (no. 79480/13)
Baybikova and Medvedenko v. Ukraine (nos. 31219/16 and 31809/16)
Shylo and Others v. Ukraine (nos. 41135/08, 70569/11, 38729/13, 44239/14, 69911/14, 34595/16, and 41826/16)
Trandafil and Others v. Ukraine (nos. 36025/09, 1673/13, and 31465/13)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.